



CHAPTER xxvii.

An Act to amend the Acts relating to the Milford Docks Company and for other purposes. A.D. 1903.
[30th June 1903.]

WHEREAS by the Milford Docks Act 1874 the Milford Docks Company (in this Act called “the Company”) were incorporated and by that Act and the Milford Docks Act 1875 were empowered to make the docks and works therein respectively described :

And whereas various Acts have from time to time been passed relating to the Company and their affairs :

And whereas by the Milford Docks Act 1892 (hereinafter called “the Act of 1892”) as amended by the Milford Docks Act 1894 (hereinafter called “the Act of 1894”) and the Milford Docks Act 1898 the directors of the Company are authorised to create and issue a special charge debenture stock (to be called “Milford Docks special charge debenture stock” and in this Act referred to as “special charge debenture stock”) secured primarily as regards the principal upon certain interests in the Milford Haven Dock and Railway Company and other like interests which they were authorised to acquire (if and when acquired) and as regards interest on a fund formed out of the net receipts of the Company in respect of the interests so authorised to be acquired and also (as regards both principal and interest) as a first charge upon the general undertaking of the Company ranking *pari passu* as regards the principal with the Milford Docks debenture stock A (hereinafter called “debenture stock A”) but as regards interest in priority to that stock :

And whereas by the Act of 1894 the directors of the Company were authorised to grant special mortgages (to be called “Milford Docks special mortgages”) and in this Act referred to as “special

A.D. 1903. mortgages”) in lieu of and secured in the same manner and with the same priorities as such special charge debenture stock :

And whereas it is expedient that the directors of the Company be authorised to create and issue such special charge debenture stock or to grant such special mortgages with the same priority as regards principal as is by the Act of 1892 provided for as regards the interest thereof and that provision be made as hereinafter contained for the formation of a sinking fund for the redemption of such special charge debenture stock and special mortgages :

And whereas the reconstruction of a portion of the wall of the dock is urgently required in order to enable additional accommodation to be provided for traffic passing by railway :

And whereas the holders to the extent of three-fourths and upwards in value of debenture stock A have consented in writing to the powers contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Milford Docks Act 1903.

Interpretation.

2. In this Act the expression “the Acts of 1892 to 1898” means the Act of 1892 as amended by the Act of 1894 and the Milford Docks Act 1898 and the expression “profits of the Company” has the meaning assigned to that expression by the Act of 1892.

Principal of special charge securities to rank in priority to debenture stock A.

3. Notwithstanding anything in the Acts of 1892 to 1898 contained the following provisions shall from and after the creation and issue of any such special charge debenture stock or granting of any special mortgages have effect (that is to say) :—

(1) The principal moneys secured by special charge debenture stock and special mortgages shall as well as the interest thereon be charged upon the undertaking of the Company in priority to the principal secured by debenture stock A and the interest thereon :

(2) The directors of the Company may if they think fit at any time after the creation and issue of any special charge debenture stock or the granting of any special mortgages from time to time out of the funds or profits of the Company or any of them set apart as a sinking fund for the redemption

of special charge debenture stock or special mortgages such sum or sums as they think fit and all sums so set apart and the annual produce thereof if invested shall be dealt with as the directors may from time to time determine for the purpose of such redemption and the directors may from time to time apply in or towards the redemption of special charge debenture stock or payment off of special mortgages the whole or any part of such sinking fund :

Provided that (1) the directors shall not issue special charge debenture stock or special mortgages to any greater amount than thirty thousand pounds without the approval of three-fourths in value of the holders of debenture stock A present personally or by proxy at a special meeting expressly called for the purpose (2) The terms and conditions upon which any such further issue shall be made and upon which any sinking fund for its redemption shall be created shall be submitted to and approved by such meeting (3) Such meeting of holders of debenture stock A shall be convened in manner prescribed by the Companies Clauses Consolidation Act 1845 for the holding of extraordinary general meetings of shareholders and at such meeting any holder of debenture stock A may vote in person or by proxy and the provisions of sections 76 and 77 of the Companies Clauses Consolidation Act 1845 with respect to the appointment of proxies by shareholders and the voting by proxy shall apply to the appointment of proxies by the holders of debenture stock A and to the voting by such proxies (4) If several persons be jointly entitled to any debenture stock A the person whose name stands first in the register of debenture stock as one of the holders thereof shall for the purposes of voting at such meeting be deemed to be the sole proprietor thereof and at such meeting his vote whether given in person or by proxy shall be allowed as the vote in respect of such debenture stock without proof of the concurrence of the other holders thereof and all trustees executors administrators and other persons legally holding debenture stock A in any representative or fiduciary capacity are hereby expressly authorised to vote in respect of such debenture stock at any such meeting and section 79 of the Companies Clauses Consolidation Act 1845 shall also *mutatis mutandis* apply to and in the case of the holders of debenture stock A and (5) section 80 of the Companies Clauses Consolidation Act 1845 shall *mutatis mutandis* apply to the proof of the approval by the necessary majority of the holders of debenture stock A of any resolution proposed at such meeting.

A.D. 1903.

Extension of
section 11 of
Act of 1892

4. The moneys to arise from the creation and issue of special charge debenture stock or the granting of special mortgages as the case may be shall (except in the case of special charge debenture stock or special mortgages issued or granted for the purposes of redeeming special charge debenture stock or paying off special mortgages which shall be applied to those purposes respectively) be applied in or towards the payment of the costs and expenses of and incident to the preparation of applying for and obtaining and passing of this Act and to the payment of the cost of the reconstruction of the wall of the dock in addition to the other purposes mentioned in section 11 of the Act of 1892.

Costs of Act.

5. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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